

EXPERT REPORTS · 15 OCT 1999

Court-ordered expert report

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Court-ordered expert report	15 Oct 1999	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Court-ordered expert report — Experts Martin and Dumont · 15 October 1999

Overview: report of the financial experts Alain Martin and Jean-Luc Dumont, appointed by the Paris Court of Appeal (judgment of 9 December 1998, RG 1998/14119), in the case SEBOL and others v. McDonald's France.

Key points

The report recalls the contractual context: by an agreement of 5 August 1987, McDonald's granted Mr Collorafi under lease-management (location-gérance) a fast-food business in the Carrefour shopping centre in Antibes, transferred on 31 August 1987 to SEBOL (base fee of 12% of turnover excluding VAT, service fee of 5%). The “Antibes Nord” restaurant was entrusted to B et O on 9 October 1996 (base fee of 20%), with an amendment of 10 June 1997 adjusting the fees. At the end of 1996, McDonald's decided to open restaurants in Antibes Ouest and Vallauris. Answering the Court's ten questions, the experts conclude in particular that the increase in combined fees was not offset by the savings in administrative costs, because of the collapse in activity in 1997, and note that taking into account the decisions of 18 May 1998 would have led to cumulative negative equity of 13,971,552 francs.

Significance

The central technical document of the appeal: the experts' analysis informs the Court on the management of the companies and the burden of the fees, with a view to the judgment on the merits.

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Source: bernardcollorafi.org/en/documents/court-ordered-expert-report-martin-dumont-paris-court-of-appeal-fees-1999/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.